

24STCV20607 24STCV20607

County: los-angeles

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Case Number: 24STCV20607 Hearing Date: July 28, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

DAVID

WALSH,

Plaintiff,

vs.

TART

OPTICAL ENTERPRISES, LLC, et al.,

Defendants.

Case No.:

24STCV20607

Hearing

Date:

July 28,

2026

ORDER DENYING MOTION TO COMPEL ARBITRATION

I. BACKGROUND

Defendants Tart Optical

Enterprises, LLC and Tart Optical Enterprises, Inc. ("TOE") allegedly utilized Plaintiff

David Walsh's ("Walsh") image and likeness outside the scope of the parties' pre-existing

contract. Walsh sued Defendants for statutory misappropriation of publicity and

common law misappropriation of publicity.

On April 28, 2026, TOE filed the instant motion to compel arbitration

and to stay proceedings. Walsh filed an opposition. TOE filed a reply.

II. EVIDENTIARY OBJECTIONS

The Court rules on Walsh's objections to TOE's evidence as

follows:

1.

Bagnall Decl. ¶¶ 3-6 – SUSTAINED as

to relevance and legal conclusion

2.

Bagnall Decl. ¶¶ 7, 8-16 – SUSTAINED

as to relevance

3.

Fitzpatrick Decl. ¶¶ 5-6, 10, 11 –

OVERRULED

4.

Fitzpatrick Decl. ¶ 9 – SUSTAINED as

to lack of foundation/personal knowledge.

5.

Exhibit 1-11 – OVERRULED

6.

Exhibits 12-15 – SUSTAINED as to

relevance and hearsay.

7.

Exhibit 16 – OVERRULED.

III. LEGAL STANDARD

Under both the Federal Arbitration Act and

California law, arbitration agreements are valid, irrevocable, and enforceable,

except on such grounds that exist at law or equity for voiding a contract. (Winter

v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943,

947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2.[1])

This is usually done by presenting a copy of the signed, written agreement to the court. “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party’s refusal to arbitrate the controversy. (§ 1281.2.) The filing of a lawsuit against the moving party for a controversy clearly within the scope of the arbitration agreement affirmatively establishes the other party’s refusal to arbitrate the controversy. (Hyundai Amco America, Inc. v. S3H, Inc. (2014) 232 Cal.App.4th 572, 577.)

“Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration ‘if the court determines that an agreement to arbitrate the controversy exists.’” (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery) (quoting § 1281.2).) Accordingly, “when presented with a petition to compel

arbitration, the court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute." (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, "a party seeking to enforce an arbitration agreement must show the agreement's terms are sufficiently definite to enable the court to know what it is to enforce." (Ibid. [internal citations omitted].) "Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed." (Ibid.) An arbitration agreement "must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code § 1368.) If uncertainty exists, "the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist." (Civ. Code § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) It would then be the burden of the party

opposing the motion to prove by a preponderance of the evidence any fact necessary to her opposition. (Ibid.) “In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination. (Ibid.)

IV. DISCUSSION

TOE argues this action is subject to arbitration as Walsh entered into a valid arbitration agreement with non-party SwipeCast, Inc. (“SwipeCast”), agreeing to resolve any arising disputes via binding arbitration. For the Court to grant a motion to compel arbitration, the moving party must demonstrate the existence of a valid arbitration agreement between the moving and refusing party, as well as the refusing party’s refusal to arbitrate the controversy. (§ 1281.2.)

A. Existence

of Arbitration Agreement Between Parties

TOE provided a copy of SwipeCast’s Terms and Conditions which include an arbitration clause, that were in effect as of September 26, 2019. (Mot., Fitzpatrick Decl. ¶ 9, Ex. 11)

The terms and conditions, in pertinent part,

provides as follows:

“YOU AND SWIPECAST AND ITS

RESPECTIVE CORPORATE PARENTS, SUBSIDIARIES, AFFILIATES, PREDECESSORS IN

INTEREST, SUCCESSORS, PERMITTED ASSIGNS, AND ANY OTHER PARTIES ON WHOSE BEHALF

YOU ARE ACCESSING THE SERVICE AGREE TO ARBITRATION (EXCEPT FOR MATTERS THAT MAY

BE TAKEN TO SMALL CLAIMS COURT), AS THE EXCLUSIVE FORM OF DISPUTE RESOLUTION

EXCEPT AS PROVIDED FOR BELOW, FOR ALL DISPUTES AND CLAIMS ARISING OUT OF OR

RELATING TO THIS EULA OR THE SERVICE.” (Ibid.)”

It is undisputed that SwipeCast’s terms and

conditions included an arbitration clause at the time in question. However, the

Court does not find there is sufficient evidence to establish Walsh signed this

agreement and agreed to the pertinent terms. “The petitioner bears the burden

of proving the existence of a valid arbitration agreement by a preponderance of

the evidence, while a party opposing the petition bears the burden of proving

by a preponderance of the evidence any fact necessary to its defense.

[Citation.] The trial court sits as the trier of fact, weighing all the

affidavits, declarations, and other documentary evidence, and any oral

testimony the court may receive at its discretion, to reach a final

determination. [Citation.].” (Ruiz v. Moss Bros. Auto Grp. (2014) 232

Cal. App. 4th 836, 842.)

The only evidence offered in support of this

assertion is found in the declaration of Peter Fitzpatrick ("Fitzpatrick"), the custodian of records for SwipeCast. Fitzpatrick attests that the provided agreement "was in effect at the time Talent, David Walsh, registered for and used the SwipeCast platform[.]" but provides no basis for this claim. (Id. at ¶ 9.) Fitzpatrick does not attest as to the existence of any records of Walsh 'registering', or how Fitzpatrick obtained this information. Therefore, this statement is subject to objection on the basis of lack of foundation and personal knowledge.

There

is no other evidence to establish Walsh utilized SwipeCast or agreed to SwipeCast's terms and conditions at any point, much less when the provided terms were in effect. Absent evidence Walsh agreed to the arbitration agreement terms, the Court cannot find the existence of an arbitration agreement between Walsh and SwipeCast, much less TOE.

B. Equitable Estoppel

Additionally, the terms and conditions only provides that it is an agreement with SwipeCast and SwipeCast's intended beneficiaries. "Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it." (Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc. (2005) 129

Cal.App.4th 759, 763.) One pertinent exception is based on the doctrine of

equitable estoppel. (Boucher v. Alliance Title Co., Inc. (2005) 127

Cal.App.4th 262, 268 (Boucher); Goldman v. KPMG, LLP (2009) 173

Cal.App.4th 209, 220.) TOE is not a party to this agreement but does argue that

it should be included under the doctrine of equitable estoppel.

TOE argues it should be

included under the doctrine of equitable estoppel, as Walsh's claims are

"founded in and inextricably intertwined" with the SwipeCast transaction,

because the photos and images at issue in this case would not exist but for the

SwipeCast transaction. (Goldman v. KPMG, LLP

(2009) 173 Cal.App.4th 209, 221.) The doctrine of equitable estoppel allows the

court to compel arbitration when the claims against the nonsignatory are

founded in and inextricably bound up with the obligations imposed by the

agreement containing the arbitration clause. (Id. at 219.) In Goldman,

the Court specifically noted a plaintiff could not 'have it both ways' by

relying on the terms of the agreement to assert claims against the

nonsignatory, then repute the nonsignatory's application of the arbitration

agreement. (Id. at 220.)

There is no evidence to suggest Walsh is relying upon the

terms of the SwipeCast agreement to sue TOE. Walsh's claims are based upon TOE

allegedly continuing to use Walsh's image outside of the contracted 6-month period. The complaint does not require or rely upon on the existence of the SwipeCast agreement to bring actionable claims against TOE. The mere fact the SwipeCast agreement allegedly put Walsh and TOE into contact, eventually leading to a distinct image contract, does not make the SwipeCast agreement "inextricably intertwined."

The facts of this case are similar to Pacific Fertility Cases (2022) 85 Cal.App.5th 887. In Pacific Fertility, fertility clinic patients brought an action against a manufacturer and seller of allegedly defective cryogenic storage tank that failed to preserve their eggs and embryos. (Ibid.) The court found the manufacturer could not enforce the fertility clinic's arbitration agreement via equitable estoppel, even though the plaintiffs only encountered the defective tank because of their contracts with the fertility treatment center. (Id. at 897.) This was despite the fact the plaintiffs were suing the fertility clinic for separate causes of action, relating to the incurred harm. (Id. at 898.) "Plaintiffs...are not seeking to enforce the terms of their agreements with [fertility clinic] against [manufacturer]. Nor does the court need to look to the plaintiffs' agreements with [fertility clinic] to determine liability as to [manufacturer]. To the contrary, plaintiffs' claims against [manufacturer] are viable without

reliance on the terms of the fertility services agreements with [fertility clinic]. Thus, for this reason, as well, the court's order denying arbitration as to [manufacturer] withstands challenge on appeal." (Id. at 899.)

Like in Pacific Fertility, Walsh

is not seeking to enforce the SwipeCast agreement against TOE. Walsh's claims against TOE do not require the Court evaluate Walsh's agreement with SwipeCast.

Therefore, Walsh's claims are not interconnected to the SwipeCast arbitration agreement. Even if TOE had provided evidence demonstrating Walsh agreed to the relevant terms and conditions, nonsignatory TOE would have no right to enforce the arbitration agreement.

V. CONCLUSION

Based on the foregoing, Defendants' motion to compel arbitration is DENIED.

Walsh is ordered to give notice.

DATED:

July 28, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line “SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.